IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-513
CP (CAA) No.-105/230/232/PB/2019

IN THE MATTER OF:
Landcraft Developers Pvt. Ltd. With Champion Infraprojects Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 03.10.2022**

CORAM:
SHRI P.S.N. PRASAD,
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant Ms. Kriti Krishana, Adv.
For the Respondent

ORDER

This is a 2nd motion amalgamation proposal. Ld. Counsel for the Petitioner has submitted that the RD's report is filed and in the said report the RD has indicated that they have no objection to proceed with the proposal. OL report is not available on the e-portal of the Tribunal. Therefore, Ld. Counsel for the Petitioners is directed to follow up the matter with the Office of OL. With regard to Income Tax Department, as Income Tax Department has so far not furnished any replies/response, the presumption under Section 230(5) is attracted wherein it is provided that within a period of 30 days from the date of receipt of the notice if the authority fails to file its report it shall be presumed that they have no representation to make on the proposal. Therefore, the Income Tax Department is set as ex-parte and the opportunity afforded to the Income Tax Department for filing their reports stands closed. Two weeks time is granted for filing the report of the OL. List the matter on **03.11.2022.**

(RAHUL BHATNAGAR)
MEMBER (T)

(P.S.N. PRASAD)
MEMBER (J)

Amit Tiwari